

TRAINING SEMINAR ON THE APPLICATION OF THE INNOVATIONS OF
THE UNIFORM ACT ON SIMPLIFIED RECOVERY PROCEDURE AND
MEASURES OF EXECUTION-BAMENDA FRIDAY 26TH JULY 2024
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MODULE 3

**INNOVATIONS TO THE SIMPLIFIED RECOVERY
PROCEDURE UNDER THE 2023 UASRPME**

BY

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INTRODUCTION

- On the 10th of April 1998, a new legislation to promote business, investment and protect creditors in business transactions was enacted. The Uniform Act on Simplified Recovery Procedure and Measures of Execution herein after referred to as UASRPME was

INTRODUCTION

- recently revised in November 2023. It is therefore an innovation in the OHADA sub-region as a whole and Cameroon in particular. Prior to this UA, recovery of debts was governed in Anglophone Cameroon by the Undefined List under Order 3, Rule 9-14 of the SCCPR cap 211 of the laws of the federation of Nigeria 1948, and by virtue of the Simplified

Procedure under Law No 89/021 of 29th December 1989 as amended by Law No 96/10 of 5th August 1996 which applied in the whole country. By virtue of section 10 of the OHADA Treaty, the Uniform Acts are directly applicable and overriding in contracting states.

INTRODUCTION

- **The UASRPME introduced two modes of recovery; the traditional method for the recovery of debts, and the more innovative method to deliver or return an object or property (which shall be treated simultaneously). We will look at the Non-contentious and the contentious phase.**

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)



I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

A- CONDITIONS

- **Conditions for the recovery of debts;**

- **Characteristics of the debt; the debt must arise from a contractual obligation which is;**

- **Due;** the debt due is that which has fallen due. The date agreed between the parties for its payment has arrived. (CCJA, 2ème Ch., arrêt n°023/2010 du 08/04/10);
- **Certain:** A claim that is certain is one that is not disputed. Both the creditor and the debtor agree on its existence. It must be real, i.e. not contingent, and must not be subject to a suspensive condition.
- **owing;** per article 2 of the UASRPME.
- What of the liquid nature of the debt in the old UASRPME 1998?
- it should equally be Unquestionable per the 2006 Law on Judicial Organisation in Cameroon as amended in 2011.

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- -Nature of the debt;The should arise from either;
- - a contract (legal contract-***ex dolo malo non oritur actio*** ie the existence of a contractual relation between the debtor and the creditor, see **CCJA, Ass. Plénière, arrêt n°041/2014 du 23/04/14;**), or
- - commitment results from the **issuance, endorsement, guarantee or acceptance** of any negotiable instrument(see article 4 UAGCL for commercial transactions by form-promissory notes, Bills of Exchange and warrants)
- - the **issuance of a cheque for which there is insufficient cover, or without cover** per article 2 of the UASRPME 1998 as revised in 2023. It should be noted that the old UA spoke of issuance and acceptance of a cheque..

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- The Cheque should respect the provisions of **article 43 of Regulation No 02/03/CEMAC/UMAC-CM on the Means, Systems and Incidence of Payment 2003**
- The said instrument lays down the time limits for the validity of Cheques. For cheques issued in one town to be cashed in the same town, it must be presented to the counter within 08days. When it is issued in one town to be cashed in another

town, it must be presented to the counter within 20days. When it is between 02 member states, the parties have 45days. When it is a non CEMAC member state and a CEMAC Member State, the cheque must be presented within 60days. After these time limits, it expires and can no longer be used to recover a debt by way of simplified recovery.

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- Where only one of these characteristics is lacking, the claim is not eligible for this procedure: CCJA, 2nd Ch., judgment no. 191/2023 of 26 October 2023.
- **Conditions for the delivery or return of an object of property;**
- By virtue of article 19 of the UASRPME, the procedure may also be used by a person who claims to be the creditor of a contractual obligation owing, to deliver or restitute, a;
- -Specific,
- - tangible,
- -personal property,

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- **B- PROCEDURE IN THE NON-CONTENTIOUS PHASE**
- **COMPETENT COURT AND MODE OF COMMENCEMENT**
 - The competent court shall be the court of the place of residence of the debtor or one of the debtor when there are several debtors pursuant to article 3 and 20 UASRPME 2023.
- The general rule of law is that jurisdiction follows the debtor or defendant because we can easily find him. *Actur sequitur forum rei.*

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- Derogation from rule of competence if parties choose a jurisdiction in their contract
- CCJA, 1st Ch., judgment no. 089/2019 of 28 March 2019 ‘... that in the present case, it is common ground, as resulting from an examination of the documents in the file, that in article 21 of the current account agreement signed on 19 October 2011 by the parties, they stipulated ‘that the Abidjan-Plateau Court shall have sole jurisdiction to settle any disputes that may arise in connection with the present agreement’; that this intention of the parties, expressed at a time when the court thus elected had jurisdiction in principle in matters of injunctions to pay, must produce its effects, as resulting from a legally formed agreement; that the modification of the judicial map of Abidjan, which occurred subsequently with the creation of a Commercial Court by Decision no. 001/PR of 11 January 2012, does not affect the validity of

this clause assigning jurisdiction to the Abidjan-Plateau Court; that it was therefore wrong for the Commercial Court to retain jurisdiction and for its president to issue the injunction to pay that was contested; that it is therefore appropriate to overturn the judgment under appeal and to reject the claim for recovery from...’.

• **What if there is an arbitration clause in the contract? Can we still proceed to the courts for SRP?**

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- Law No 2006/015 of 29th December 2006 as amended in 2011 on judicial organization in Cameroon in its section 15(1)(b) provides for the court of first instance if the amount is equal to or less than 10million Fcfa.
- it will fall within the jurisdiction of the High court where the claim is above 10 million Fcfa, or where the claim arises from a commercial debt irrespective of the amount, if the commitment arises from a cheque, promissory note or a Bill of Exchange per section 18(1)(b) of the 2006 law on judicial organization, as was held by the Meme High Court in Ist Trust Savings and Loans v. Honourable HANAH BASUA, where the matter fell within the jurisdiction of the High Court though arising from a cheque without cover with an amount of 2.248.000Fcfa.

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- For the delivery of property, the same rule applies
- However if the value cannot be ascertained, the right thing to do is to evaluate the asset per its current market price, and determine whether it is above 10million frs (High Court), or equal to or below 10million frs (Court of First Instance).
- MODE OF COMMENCEMENT
- By way of an APPLICATION (innovation) as opposed to Petition in the old UA
- Note the English version of the new UASRPME juxtaposes Applications and petitions, the exegetical interpretation of the UA should go for an application and not a petition,

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- **Presentation of the application for an injunction to pay or order to deliver**

- Content of the application

- Identification of the parties

Surnames, first names and residences of the parties (natural persons).

obliteration of the profession by the new article 4.

- Mention of the profession has been removed. On the question of profession, see : CCJA, 1st Ch., judgment no. 080/2023 of 27/04/23 ‘... the Court of appeal, in rejecting a plea of inadmissibility based on the failure to specify the profession of the parties on the application for an injunction to pay, held “that the failure to indicate the profession of the creditor (...) does not result in the inadmissibility of the application where the debtor does not establish the existence of a profession exercised by the said creditor”;

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

☐ **Name, form and registered office (legal entities)**

☐ **Information on the claim**

☐ **Amount of the claim**

☐ **Breakdown of the various elements of the claim**

- Sanction for breach of this requirement

☐ Automatic inadmissibility of the application:
CCJA, no. 002/2014 of 30/01/14; CCJA, 1st

Ch., judgment no. 080/2023 of 27/04/23

☐ CASE LAW;

☐ CCJA, 2nd Ch. judgment no. 195/2017 of 23/11/17 (failure to indicate the form of the company on the pretext that this was not specified in the contracts); CCJA, 2nd Ch. judgment no. 105/2017 of 27/04/17 (error in the indication of the form of the company, mention of Sarl instead of SA, error resulting in the inadmissibility of the application :

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- ‘... that specifying the legal form of a legal person is essential for assessing the status and capacity of those who act in its name and on its behalf; that, therefore, in ruling as it did, the Court of Appeal infringed the provisions of the aforementioned Article 4 and rendered its decision liable to be quashed ...”);
- **The Application for the restitution of property must contain on pain of inadmissibility:**
 - Names, forenames and residence of the parties (natural persons) and name, legal form and registered office (legal persons)
 - Precise description of the property for which delivery is requested

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- **RULING OF THE PRESIDENT OR THE JUDGE DELEGATED BY HIM**
- **Pursuant to article 5 (New) UASRPME 2023, the President of the competent court or the Judge delegated by him shall rule within three (3) days of the referral (Innovation in the 2023 UASRPME.**
- **- Dismissal of the Application**
- It must be by a reasoned ruling
- Decision must be given within three days of the lodging of the application
- Decision not subject to appeal except under ordinary law

I- NON-CONTENTIOUS PHASE (PHASE GRACIEUX)

- Ruling granting the Injunction to pay a debt or order to deliver property

court registry

- The injunction to pay

The Order to deliver or restitute property

- the amount claimed Or
- on the justified part of the claim
- Return to the creditor of the original documents produced
- Certified copies of documents kept at the

- Copy of the order issued to the applicant
- Original documents returned to applicant
- Certified copies of documents kept at the court registry

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- **II-THE CONTENTIOUS PHASE (phase contentieux)**
- Service of the injunction to pay or order to deliver Ruling on the debtor;
- **A- SERVICE OF THE DECISION ON THE DEBTOR BY WAY OF AN EXTRA JUDICIAL ACT OF A BAILIFF AND THE OPPOSITION**
- Service of Ruling on the creditor
- Failure to serve the Ruling on the creditor
- The Ruling must be served within **three (03) months** of its issue.
- After the three-month period, the order lapses and can no longer be served

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- Service is done through an **Extra Judicial Act of a bailiff** else it is void and null per article 7 UASRPME. English speaking practitioners should not get confused with the misuse of notification instead of service by the translated English version of the UASRPME.
- **Article I-I of the innovated UASRPME 2023** has defined **Service of Processes** and **Notification**. The former is by a Bailiff while the latter is by any means. The french version talks of signification (service through bailiff act) and not “notification, while the English version talks of notification instead of service.

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- **CONTENT OF THE BAILIFF ACT**
- **- For the service of the injunction to pay**
- A summons to the debtor to pay the amount set out in the injunction together with costs, within ten (10) days of service. OR
- A summons to the debtor to lodge an Opposition within ten (10) days if he has any grounds to put forward.
- **- For the Service of an Order to deliver or restitute property**
- **Service of the certified copy of the application and the Order(Ruling)**
- **Contents of the extra judicial Act, on pain of nullity :**
- **Summons to have, within a period of ten (10) days :**
- **Either to transport, at his own expense, the designated property to the place and under the conditions indicated;or**
- **to lodge an opposition by extrajudicial act.**

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- warning to consult the documents produced by the creditor at the court registry
- Indication of the time limit for lodging an opposition
- Indication of the court before which the opposition shall be brought, and the form of the notice of opposition

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- **Penalties for breach of the mandatory rules on service**
- Nullity of the defective document of service
- Judge prohibited from ruling on the merits of the case
- **Possibility of new service**
- In the event of annulment of service for breach of Article 8, the creditor may re-serve the order for payment.
- New service if the 3-month period provided for in the UASRPME is still running for the creditor
- **In case of no opposition or withdrawal after opposition by the debtor**
- Application for the executory formula to be affixed
- The Executory Formula is provided for in **(Section II Law No 2011/027 of 14th December 2011 to amend and supplement Law No 2006/015 of 29th December 2006 on Judicial Organisation in Cameroon)**
- Written or verbal request to the registry (RIC)
- Favourable solution or refusal by the registry
- In the event of refusal, referral to the President

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- **Apposing the executory formula to the Ruling**
- The Ruling has the effect of a decision after full hearing
- No appeal may be lodged against the Ruling bearing an executory formula
- However, it is possible to obtain discontinuance of proceedings before the opposition judge in the event of opposition (article 10 UASRPME)
- It is possible to have the proceedings discontinued;
- Before the opposition court
- The bailiff or execution authority is challenged
- The decision to discontinue proceedings must be made within 15 days from the first hearing
- The decision is not subject to appeal

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- Article 16-I UASRPME 2023 goes further to stipulate that the executory formula shall be affixed to the injunction to pay where, by a decision not subject to suspensive appeal if:
 - - the opposition is declared inadmissible;
 - - the opposition is declared null and void;
 - - the court before which the opposition is brought has either declined jurisdiction or has been declared incompetent.

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- Opposition by the debtor
- Form of opposition: **by way of Extrajudicial Act (Containing the OPPOSITION AND SUMMONS TO APPEAR IN COURT WITHIN 30 DAYS)**
- **Opposition**; Once the creditor serves an injunction to pay a sum or an order to deliver property on the debtor, the debtor must file an OPPOSITION to the President of the court who issued the order within 10 days, Cognizance should be had on the distance of the debtor.
- **Problematic of article 9 UASRPME 2023: Nuance with the french version which rather talks of the Court whose president rendered the injunction to pay or Order to deliver**
- **So who exactly are we filing the opposition to? THE PRESIDENT OR THE COURT? The English version talks of the President of the Court while the French version talks of the Court instead,**
- **Article 42 of the OHADA treaty is instructive as to which version prevails in case of conflict (the french version)**
- Summons: a day within 30 days
- Consequence; forfeiture
- Injunction to pay or order to restitute become final,

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- **Opposition period: ten days (instead of 15 under the old UASRPME)**
- From date of personal service
- From the first enforcement measure that has the effect of making all or part of the debtor's assets unavailable
- **ATTEMPT AT CONCILIATION**
- Attempt at conciliation (Art.12 UASRPME)
- Appointment of a Conciliation judge for the conciliation attempt (Innovation)
- Attempt at conciliation to take place within 15 days of appointment of the conciliation judge
- Conciliation attempt to take place in chambers/Camera
- **SUCCESS OF CONCILIATION**
- A Conciliation Report is drawn up, signed by the parties, the judge and the registrar and executory formula inserted (this ties with article 33 UASRPME 2023 on Writs of Execution),

II- CONTENTIOUS PHASE (PHASE CONTENTIEUX)

- **FAILURE OF CONCILIATION**

- Report of failure of conciliation is drawn up by the judge
- Referral of the case to the next hearing
- Examination of the entire dispute, including incidental claims and defences on the merits
- Judgment given within **two (02) months** from the date of the first hearing
- Judgment rendered as a judgment after full hearing

- **ABSENCE OF THE DEBTOR AT THE HEARING**

- It should be noted that the absence of the debtor who filed the opposition shall not hamper the hearing. The court shall

still go on to hear the matter. This is because the burden of prove lies on the creditor who alleged and not the debtor per article 13 UASRPME which stipulates; **“The burden of proof of the debt shall lie on the petitioner who seeks an injunction to pay”**. This simply means that if the creditor abstains from court after the debtor has filed and served the opposition on him, the matter will be thrown out of court since the person who has the burden to prove has deserted.



APPEALS IN THE SIMPLIFIED RECOVERY PROCEDURE

- Once the judgment is given, the court becomes functus officio, and can no longer entertain that same petition
- The only remedy available to parties at this stage will be an ordinary appeal before the court of Appeal of the region where the court's which delivered the judgment has jurisdiction.
- The time limit to file such an appeal is now

15days in accordance with the procedure of the national laws per article 15 and 26 UASRPME 2023, and Article 13 of the OHADA Treaty. The time limit in the old UASRPME was 30days. The OHADA legislator has therefore reduced the duration for appeals by making the procedure more simplified and expeditious. The time limit for appeal shall run from the date of service of the decision in the case of a default judgment.

INNOVATIONS ON APPEALS IN THE SIMPLIFIED RECOVERY PROCEDURE

- The amended UASRPME 2023 has brought in some innovations in article 15. Per this new provision of the law, both the appeal and the time limit for appeal shall be stay execution. However, the court may order provisional enforcement of the decision.
- The appeal shall be lodged by extrajudicial act, served on the other party and on the Registry of the court that rendered the judgment.
- The Registrar of the court that rendered the judgment shall forward the case file, together with all the exhibits, to the competent appellate court within ten (10) days of being served with the notice of appeal.
- The appellate court shall rule within two (2) months from the date of the first hearing which shall not be held more than one (1) month after receipt of the file.

THE END

- **THANK YOU FOR YOUR KEEN ATTENTION**

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